

Court No. - 29

Case :- WRIT - C No. - 22453 of 2019

Petitioner :- Hur Bano @ Noor Bano

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bed Kant Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the respondents No. 2 and 3.

The petitioner has applied for grant of electric connection on 04.06.2019 but the application is not being considered as he has not submitted no objection certificate from the landlord.

The submission of learned counsel for the petitioner is that he is having dispute with the landlord and as such it is not possible to obtain any no objection from him.

Clause 4.4 of the U.P. Electricity Supply Code, 2005 apart from other things also permit processing of the application for electric connection on furnishing of indemnity bond where there is a litigation as aforesaid.

In view of the aforesaid facts and circumstances, we dispose of this writ petition with the direction to the respondent No.3 to consider the above application of the petitioner if possible on taking indemnity bond from the petitioner instead of insisting for no objection certificate from the landlord most expeditiously if possible within a period of six weeks from the date of copy of this order is produced before him.

The Writ Petition is **disposed off**.

Order Date :- 16.7.2019

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